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Case Number: 23PSCP00421 Hearing Date: June 24, 2026 Dept: 6

CASE

NAME: Vivian

Graue-Allen v. Damaris Santos, et al.

Plaintiff's

Motion for Order to Show Cause re: Contempt; Request for Sanctions, Appointment

of Receiver, and Emergency Preservation Orders

TENTATIVE

RULING

The Court GRANTS in part Plaintiff's Motion for Order to Show

Cause re: Contempt; Request for Sanctions, Appointment of Receiver, and

Emergency Preservation Orders. The Court hereby

PROHIBITS Defendants from: (1) transferring or withdrawing funds; (2) closing

accounts; (3) destroying records; (4) deleting electronic data; (5) altering

accounting systems; and (6) modifying access credentials.

The

Court DENIES the motion as to Plaintiff's request that Defendants immediately disclose and turn over bank account information, financial statements, merchant processor records, accounting records, passwords and credentials, corporate communications, and files, except that Defendants are to immediately provide Plaintiff with the access credentials to all banking accounts to the extent they have been changed.

The

Court GRANTS Plaintiff's request that the Court issue an OSC re Contempt. The Court will set the hearing on the OSC re Contempt at the hearing on this motion.

The

Court will hear further from Plaintiff regarding the appointment of a receiver.

The

Court DEFERS ruling on the request for monetary sanctions until the hearing on the OSC re Contempt.

Plaintiff is ordered to give notice

of the Court's ruling within five calendar days of this order.

BACKGROUND

This action is an intra-corporate dispute. On September 21, 2023, plaintiff

Vivian Graue-Allen (Plaintiff) filed this action against defendants Damaris Santos (Santos), Passage Enterprises Incorporated (Passage Enterprises)

(collectively, Defendants), and Does 1 through 20, alleging causes of action

for involuntary dissolution of corporation, accounting, breach of fiduciary

duty, conversion, declaratory relief, injunctive relief, and elder abuse. On

June 20, 2024, the Court granted Plaintiff's ex parte application for order to

substitute personal representative in place of deceased Plaintiff and George

Graue, as personal representative of the Estate of Vivan Graue-Allen, was

substituted in as Plaintiff.

On February 14, 2024, the Court entered a preliminary injunction

signed by the parties' respective counsel enjoining Defendants, and Plaintiff

to some extent, from engaging in certain specified conduct in connection with Defendant

Passage Enterprises.

On May 22, 2026, Plaintiff moved for an Order to Show Cause re: Contempt,

Request for Sanctions, Appointment of Receiver, and Emergency Preservation Orders.

The Motion is unopposed.

LEGAL

STANDARD

“(a)

The following acts or omissions in respect to a court of justice, or

proceedings therein, are contempts of the authority of the court:

...

(5) Disobedience of any lawful

judgment, order, or process of the court.

(Code Civ.

Proc., § 1209, subd. (a)(5).)

(a)

A receiver may be appointed, in the manner provided in this chapter, by the court in which an action or proceeding is pending in any case in which the court is empowered by law to appoint a receiver.

(b)

A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases:

(1)

In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor's claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost,

removed, or materially injured.

...

(9)

In all other cases where necessary to preserve the property or rights of any

party.

(Code Civ.

Proc., § 564, subds. (a), (b)(9).)

PRELIMINARY

ISSUES

(a) Exclusion or redaction of

identifiers

To

protect personal privacy and other legitimate interests, parties and their

attorneys must not include, or must redact where inclusion is necessary, the

following identifiers from all pleadings and other papers filed in the court's

public file, whether filed in paper or electronic form, unless otherwise

provided by law or ordered by the court:

...

(2)

Financial account numbers

If

financial account numbers are required in a pleading or other paper filed in

the public file, only the last four digits of these numbers may be used.

(Cal. Rules

of Court, rule 1.201, subd. (a)(2).)

Plaintiff's Motion fails to comply

with this requirement. (See Ricks Decl., Ex. B.) The Court admonishes Plaintiff

to comply with the California Rules of Court going forward.

DISCUSSION

Summary

of Arguments

Plaintiff

asks the Court to issue an order to show cause re contempt against Defendants

for willful violation of this Court's preliminary injunction entered on

February 14, 2024^[1] (the Preliminary Injunction). Plaintiff asks the Court to find Defendants in

contempt under Code of Civil Procedure section 1209, subdivision (a)(5), to

impose monetary sanctions against Defendants in the amount of \$2,560.00 plus

other fees and costs that may be incurred before the hearing, appoint a neutral

receiver under Code of Civil Procedure section 564 to take immediate possession

and control of Passage Enterprises, issue emergency preservation and turnover

orders, and order immediate disclosure and turnover of all applicable financial account information and records. Plaintiff contends Defendants violated the Preliminary Injunction by denying Plaintiff equal access to financial accounts and information, dissipating and diverting company assets, blocking access to company records, representing Santos as the sole corporate authority, failing to preserve corporate assets and records, and engaging in conduct threatening permanent loss or concealment of corporate property and evidence.

Plaintiff

contends Defendants willfully violated the Preliminary Injunction. Plaintiff contends that the Preliminary Injunction was clear, specific, and valid, that Defendants had actual knowledge of it, and that Defendants willfully violated multiple provisions. Plaintiff contends the Court should appoint a receiver based on the substantial risk that any remaining corporate assets, records, and evidence will be permanently lost or concealed. Plaintiff further contends emergency preservation and asset freeze orders are necessary to prohibit Defendants from transferring or withdrawing funds, closing accounts, destroying records, deleting electronic data, altering accounting systems, and modifying access credentials. Plaintiff contends the Court should also order the immediate disclosure and turnover of financial account information, records, and access credentials.

Analysis

First,

the Court finds Plaintiff's requests for emergency preservation and asset freeze orders warranted. (See *Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1071 [upholding trial court's preliminary injunction prohibiting defendant from "concealing, encumbering, impairing the value, transferring, or disposing of any of defendant's assets..."].) Plaintiff presented evidence showing that substantial withdrawals amounting to hundreds of thousands of dollars were made from Passage Enterprises' bank accounts following the issuance of the Preliminary Injunction on February 14, 2024, such that it appears Passage Enterprises' bank accounts have essentially been drained. (See Graue Decl., ¶ 6; Ricks Decl., Ex. B.) Plaintiff also presented evidence showing that Passage Enterprises' business operations are at risk following the federal government's revocation of Passage Enterprises' Medicare enrollment and billing privileges. (Ricks Decl., Ex. D.) The Court will therefore issue the requested emergency preservation order and hereby PROHIBITS Defendants from: (1) transferring or withdrawing funds; (2) closing accounts; (3) destroying records; (4) deleting electronic data; (5) altering accounting systems; and (6) modifying access credentials.

Second,

as to Plaintiff's request that Defendants immediately disclose and turn over bank account information, financial statements, merchant processor records, accounting records, corporate communications, and files, the Court declines to do so. The Court finds the request lacks specificity and is overly broad. (See *Evans v. Evans* (2008) 162 Cal.App.4th 1157, 1169 [injunction prohibiting "defamatory comments" found to be "unconstitutionally vague and overbroad"].) The Court also declines to issue a mandatory injunction at this stage when Plaintiff has not clearly demonstrated the right to such documents and information. "The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established." (*Tchrs. Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493, internal citation omitted.) The Court therefore DENIES the motion as it pertains to immediately disclosing and turning over the above-referenced documents and information, except that Defendants are to provide Plaintiff with the access credentials to all banking accounts to the extent they have been changed.

Third,

the Court finds an OSC re contempt appropriate. As noted above, Plaintiff presented evidence showing that Passage Enterprises' bank accounts have essentially been drained. (See Graue Decl., ¶ 6; Ricks Decl., Ex. B.) This

appears to violate paragraph (B) of the Preliminary Injunction, which prohibits the parties from “dissipating, diverting, converting or wasting any company-owned or controlled funds, assets, and property, including the use of company funds to pay or reimburse personal expenses...” (Order Preliminary Injunction (2/14/24), ¶ (B).)

Plaintiff

also presented evidence that Santos filed a Statement of Information with the California Secretary of State on December 15, 2025, and listed herself as the sole corporate officer and director of Passage Enterprises. (Ricks Decl., Ex. E.)

This appears to violate paragraph (D) of the Preliminary Injunction, which prohibits Santos “from making representations, whether verbal or written, to any State or Federal agency or department, including regulatory agencies, to the effect that DAMARIS SANTOS is the sole corporate officer of PASSAGE ENTERPRISE [sic] INCORPORATED, or that DAMARIS SANTOS is the sole corporate Director of PASSAGE ENTERPRISE [sic] INCORPORATED, or that DAMARIS SANTOS is the sole and exclusive representative of PASSAGE ENTERPRISE INCORPORATED.”

The Court will set the hearing date on the OSC re contempt at the hearing on this motion.

Fourth, based on the evidence

presented and discussed above, the Court finds that a receiver may be warranted to preserve Plaintiff's property rights in Passage Enterprises. (See Code Civ. Proc., § 564, subds. (b)(1), (b)(9).) However, the Court is concerned that there are not sufficient assets to pay for the appointment of a receiver. The receiver's fees would most likely be paid out of Passage Enterprises' funds, but since it appears those funds have been almost completely dissipated, it seems the cost of a receiver may outweigh the benefit of the appointment. The Court will hear from Plaintiff at the hearing on this motion how this concern can be addressed.

Finally, the Court defers ruling on

the request for monetary sanctions until the hearing on the OSC re contempt.

CONCLUSION

The Court GRANTS in part Plaintiff's Motion for Order to Show

Cause re: Contempt; Request for Sanctions, Appointment of Receiver, and

Emergency Preservation Orders. The Court hereby

PROHIBITS Defendants from: (1) transferring or withdrawing funds; (2) closing

accounts; (3) destroying records; (4) deleting electronic data; (5) altering

accounting systems; and (6) modifying access credentials.

The

Court DENIES the motion as to Plaintiff's request that Defendants immediately

disclose and turn over bank account information, financial statements, merchant processor records, accounting records, passwords and credentials, corporate communications, and files, except that Defendants are to immediately provide Plaintiff with the access credentials to all banking accounts to the extent they have been changed.

The

Court GRANTS Plaintiff's request that the Court issue an OSC re Contempt. The Court will set the hearing on the OSC re Contempt at the hearing on this motion.

The

Court will hear further from Plaintiff regarding the appointment of a receiver.

The

Court DEFERS ruling on the request for monetary sanctions until the hearing on the OSC re Contempt.

Plaintiff is ordered to give notice

of the Court's ruling within five calendar days of this order.

[1] Plaintiff's motion provides January 31, 2024, as the approximate date the preliminary injunction order was entered, but January 31, 2024, is only the date the Court granted the motion for preliminary injunction. (Minute Order (1/31/24).) The preliminary injunction order was entered on February 14, 2024.

(Order Preliminary Injunction (2/14/24).)